

Court No. - 40

Case :- WRIT - C No. - 19759 of 2018

Petitioner :- Gopal Krishna

Respondent :- State Of U P And 2 Others

Counsel for Petitioner :- Rakesh Kumar Srivastava

Counsel for Respondent :- C.S.C.,Mahboob Ahmad

Hon'ble Amreshwar Pratap Sahi,J.

Hon'ble Shashi Kant,J.

Heard learned counsel for the petitioner and Sri Kapil Dev Singh Rathore, learned counsel for the respondent Electricity Department.

The petitioner is the son of late Mohan Lal Rai in whose name the electricity connection existed. It is stated in paragraph no.4 of the writ petition that the petitioner's father died fifteen years hence yet the impugned recovery citation has been issued in the name of a dead person.

The dispute is about billing of electricity consumption of a domestic connection. In the aforesaid circumstances and after having heard Sri Mahboob Ahmad, learned counsel for the respondent no.3 the fact that the petitioner's father is already dead is undisputed. The recovery citation has been issued in the name of a dead person and therefore the same can not be sustained keeping in view the law laid down by a Division Bench of this Court in the case of **Gopal Swarup Chaturvedi Vs. U.P. State Electricity Board, Lucknow and another, 1999 AWC (4), 3349.**

Accordingly the citation can not be sustained. The impugned citation dated 04.05.2018 is accordingly quashed.

The petitioner shall apply in terms of Clause 4.44 of the U.P.Electricity Supply Code, 2005 before the third respondent for the correction and mutation of his name as the petitioner in paragraph no.7 of the writ petition has clearly stated that he is prepared to pay the amount in easy installments. The petitioner after getting his name corrected and after an order is passed by the third respondent shall move an application for installments keeping in view the provisions of Clause 6.14 of the U.P.Electricity Supply Code, 2005. The third respondent shall pass an appropriate order thereon. This exercise be completed within a period of six weeks of the date of presentation of a certified copy of this order before the third respondent . The writ petition is accordingly allowed subject to above.

Order Date :- 29.5.2018

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